BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

I.A 263/2018
in
C.A (CAA) No. 30/BB/2018
U/R 154 of the NCLT Rules, 2016

In the matter of:

1) **Wipro Technologies Austria GMBH,**
Reichsstrasse 126,
6800 Feldkirch, Austria.- Transferor Company No.1

2) Wipro Information Technology Austria GMBH.
Reichsstrasse 126,
6800 Feldkirch, Austria. - Transferor Company No.2

3) Newlogic Technologies SARL.
Tour Prisma, 4-6 Avenue d'Alsace 92400
Courbevoie-Paris la Defense. - Transferor company No.3

4) Appirio India Cloud Solutions Private Limited,
SJP1-A Block,
Doddakannelli, Sarjapur Road,
Bangalore-560035. - Applicant/Transferor Company No.4

5) Wipro Limited,
Doddakannelli, Sarjapur Road,
Bangalore-560035. - Transferee Company

Coram: 1. Hon'ble Shri Rajeswara Rao Vittanala, Member (Judicial)
2. Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

Date of Order: 7th September, 2018

For the Petitioner : Mr. S.M Pramod, PCS.

ORDER

Per: **Hon'ble Shri Ashok Kumar Mishra, Member (Technical)**

1) I.A No. 263/2018 in C.A (CAA) No. 30/BB/2018 is filed by Applicant Companies No.1 & 2, under Rule 154 of the NCLT, Rules 2016 by inter-alia seeking to rectify the order passed by the Tribunal on 10th August 2018 in CA (CAA) No.30/BB/2018, with following changes:

   i. Under para 12 on page No.5, the name of the Transferee Company has been incorrectly mentioned as "Mindtree Limited" instead of "Wipro Limited".
   ii. Under para 19 on page No.6, the number of shareholders of the Transferee Company has been incorrectly mentioned as 4,52,37,84,491. This needs to be replaced with "2,69,694", which is the correct number of shareholders as per the Chartered Accountant's certificate.

2) Heard Mr. S.M Pramod, learned PCS for Applicant Companies.

   The learned PCS submitted that there are two typographical errors in the order passed by the Hon'ble Tribunal on 10th August 2018 for convening the meetings of the Equity Shareholders and Unsecured Creditors of the Transferee Company, which needs to be rectified.

3) We have considered the request of the learned PCS for the Applicant Companies, and also perused the order passed by the Tribunal on 10th August 2018 in CA(CAA) No. 30/BB/2018, where in due to some typographical error, under para 12 on page No.5, the name of the Transferee Company has been mentioned as "Mindtree Limited" instead of "Wipro Limited"; and under para 19 on page No.6, the number of shareholders of the Transferee Company has been incorrectly mentioned as 4,52,37,84,491, instead of "2,69,694", which is the correct number of shareholders as per the Chartered Accountant's certificate. We find that two mistakes are typographical error and thus required to be rectified. Therefore, Application deserves to be allowed.

4) In the result, I.A No. 263/2018 in C.A (CAA) No.30/BB/2018 is allowed to the extent that by mentioning under para 12 on page No.5, the name of the Transferee Company as "Wipro Limited"; and under para 19 on page No.6, the number of shareholders of the Transferee Company as "2,69,694", in the order dated 10th August 2018, passed by the Tribunal.

5) Accordingly, Registry is directed to issue necessary corrigendum.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RAJESWARA RAO VITTANALA)
MEMBER, JUDICIAL

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